

neglect of legal duty sufficient allocate the risk of mistake to the negligent actor.

Because the Court concludes that Plaintiff's asserted rescission of the release agreement is not valid as a matter of law, it need not reach Defendant's additional argument that Plaintiff waived her right to rescission and is barred by laches in light of her nearly two-year delay in claiming rescission.

Defendant's motion for summary judgment is **granted**.

Evidentiary Objections

Defendant's objections to Plaintiff's counsel's declaration in her reply do not comply with California Rule of Court 3.1354(b) ["All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion."]. Consequently, the Court will not rule on them. (See *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8-9 trial court did not abuse its discretion in refusing to rule on evidentiary objections which did not comply with Cal. Rules of Court, rule 3.1354(b)).)

12. 9:00 AM CASE NUMBER: C24-01848
CASE NAME: JOSE GONZALEZ DE LEON VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Introduction

Before the Court is Defendant City of Richmond's Demurrer. The Demurrer relates to Plaintiff Jose Gonzalez De Leon's Complaint for general negligence and violation of Vehicle Code § 17001.

For the following reasons, **the Demurrer is overruled.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their demurrer in detailing their efforts in reaching out to Plaintiff's counsel after the filing of the FAC. (Gilbert Decl. at ¶¶ 3-4.) However, the parties were unable to reach an agreement and thus the motion was brought. (Gilbert Decl. at ¶¶ 3-4.)

Request for Judicial Notice

Defendant City of Richmond ("City" or "Defendant") hereby requests the Court take judicial notice of one document, Richmond Police Department Policy 309 – Vehicle Pursuits. Exhibit A is proper for judicial notice pursuant to Evidence Code sections 452, subdivisions (b), which provides that courts may take judicial notice of a public agency's regulations and official documents. (*Longshore v. County of Ventura* (1979) 25 Cal.3d 14 [finding that it is appropriate to take judicial notice of county salary ordinances].)

Judicial notice of Defendant's Exhibit A: Richmond Police Department Policy 309 – Vehicle Pursuits is granted.

Factual Background

On August 15, 2023, 12-year-old Jose Gonzalez De Leon, Plaintiff, was a passenger in a 2013 white Honda Civic traveling south on Marina Way Street in Richmond, California. (FAC ¶ 10.) As he crossed the intersection at Ohio Avenue, a 2000 white Acura TL ran a red light, striking the Honda Civic. (FAC ¶ 11.) This collision resulted from a high-speed police chase involving a Richmond Police patrol car

and the Acura TL immediately before the incident. (FAC ¶ 12.) The collision took place less than half a mile away from an elementary school and high school. (FAC ¶ 13.) The collision caused injuries to 12-year-old Jose Gonzalez De Leon who spent weeks in the hospital, followed by months of slow recovery and physical therapy, with medical care continuing a year and a half later, causing Plaintiff to miss the entire fall semester from August 2023 through December 2023. (FAC ¶ 14.)

Procedural Background

The first Demurrer to Plaintiff's Complaint was sustained as to both causes of action with leave to amend. This Court outlined the deficiencies in both of Plaintiff's causes of action in the initial Complaint. Both the initial Complaint and the First Amended Complaint (FAC) have a cause of action for negligence and a cause of action for Violation of the Vehicle Code, although the name of the Vehicle Code cause of action was changed.

This Court mainly took issue with Plaintiff's Complaint not pleading any facts that would challenge or disprove any applicable immunities. Plaintiff took heed and pled facts that if true lead to a statutory basis of liability.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

To state a cause of action against a public entity, "the general rule that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded." (*Richardson-Tunnell v. School Ins. Program* (2007) 157 Cal.App.4th 1056, 1061.) Plaintiff's counsel must specifically identify the grounds for statutory liability against a public entity, including citing the statute. (*Searcy v Hemet Unified Sch. Dist.* (1986) 177 CA3d 792, 802 (child injured by automobile near school only alleged "enactments" in complaint).) A plaintiff must also allege facts to show that the "cause of action lies outside the breadth of any applicable statutory immunity." (*Soliz v. Williams* (1999) 74 Cal.App.4th 577, 585.) However, these rules do not deprive the plaintiff of the benefit of the general principle that the courts should liberally construe a complaint and generously allow amendments to cure deficiencies. (*Nestle v City of Santa Monica* (1972) 6 Cal.3d 920; *Keyes v Santa Clara Valley Water Dist.* (1982) 128 Cal.App.3d 882, 885.)

Applicable Law

The Government Claims Act (Govt. Code §§ 810–996.6) draws a clear distinction between the liability of a public entity based on its own conduct (direct liability), and the liability arising from the conduct of a public employee (vicarious liability). (*Zelig v County of Los Angeles* (2002) 27 Cal.4th 1112, 1127.)

Government Code § 815 establishes the general rule of limiting liability of a public entity based on its own conduct as follows, "Except as otherwise provided by statute [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public

employee or any other person.” (Gov. Code § 815(a).) Thus, direct liability for common law claims is not permissible against a public entity. (See, e.g., *Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 986; *Van Kempen v. Hayward Area Park, etc., Dist.* (1972) 23 Cal.App.3d 822, 825.) Moreover, the Court of Appeal has explained, “a public entity’s duty of care is only that specifically provided by statute.” (*Tolan*, 100 Cal.App.3d at p. 986.)

The general principle of derivative immunity provided by Government Code § 815.2(b) has statutory qualifications authorized by the section’s introductory phrase (“Except as otherwise provided by statute”). (See Legislative Committee Comment to Govt C § 815.2.) This section expressly makes the doctrine of respondeat superior applicable to public employers. (*C.A. v William S. Hart Union High Sch. Dist.* (2012) 53 Cal.4th 861; *Eastburn v Regional Fire Protection Auth.* (2003) 31 Cal.4th 1175, 1183.)

Analysis

Redundancy of Claims

Defendant contends that since both claims allege liability under Vehicle Code § 17001, that one of the claims must be dismissed on this basis alone. (MPA at p. 7: 19-23.)

Plaintiff responds that FAC’s First Cause of Action alleges general negligence as well as a violation of Vehicle Code § 21056, while the second cause of action is specifically predicated upon Vehicle Code § 17001 and pleads additional facts to address the immunity provided by Vehicle Code § 17004.7. (Oppo at p. 3: 14-23.) More specially, “[t]he First Cause of Action alleges the breach of a statutorily mandated standard of conduct, the duty to drive with “due regard,” which serves as a basis for the underlying negligence. (Veh. Code, § 21056.) The Second Cause of Action alleges the statutory mechanism for direct entity liability and pleads around the City’s claimed immunity with additional factual allegations regarding the City’s failure to adopt, promulgate, and train officers on a compliant policy. (Veh. Code, § 17001, § 17004.7.) Thus, the causes of action are not redundant. (Oppo at p.3: 24-28.)

The Court agrees with Plaintiff that the claims are not redundant.

Plaintiff has Pleaded a Valid Exception to Immunity

Negligence

To successfully plead a cause of action for negligence against a public entity, the plaintiff usually must allege statutory grounds for the public entity’s vicarious liability for the acts or omissions of a public employee (Govt. Code § 815.2) or an independent contractor (Govt. Code § 814). To plead vicarious liability, the plaintiff must specifically identify the employee whose conduct is sought to be attributed to the public entity. (*Munoz v City of Union City* (2004) 120 Cal.App.4th 1077, 1113; But see *Tom Jones Enters., Ltd. v County of Los Angeles* (2013) 212 Cal.App.4th 1283, 1293 (failure to identify employee in first amended complaint was not fatal pleading defect).) The plaintiff must also plead facts that show that the employee’s acts or omissions fell within the scope of employment. (*Hoff v Vacaville Unified Sch. Dist.* (1998) 19 C4th 925, 932; Govt. Code § 815.2(a).) Plaintiff’s counsel must specifically identify the grounds for statutory liability against a public entity, including citing the statute. (*Searcy v Hemet Unified Sch. Dist.* (1986) 177 Cal.App.3d 792, 802 (child injured by automobile near school only alleged “enactments” in complaint).)

Here, Plaintiff identified the employee whose conduct is sought to be attributed to the public entity and plead facts alleging the employee’s acts fell within the scope of employment. (FAC ¶¶ 19-20.) Plaintiff cites to Vehicle Code § 21056 which provides an exception, which does not relieve a driver of

an emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway, nor protect him from the consequences of an arbitrary exercise of the privileges granted in section 21055. (FAC ¶19.)

The Demurrer is overruled as to the Negligence cause of action.

Vehicle Code § 17001

Defendant takes the position that despite Plaintiff's attempts to plead around this immunity, the City is entitled to immunity under Vehicle Code section 17004.7, as demonstrated by the Richmond Police Policy 309 - Vehicle Pursuits. (RJN Ex. A.) Defendant argues that While Plaintiff alleges that the City failed to adopt or implement a policy to assert this immunity, the Richmond Police Policy 309 - Vehicle Pursuits clearly demonstrates otherwise. The Court disagrees.

Taking judicial notice that a police policy exists does not conclusively prove that Defendant is immune from liability for civil damages under Vehicle Code § 17004.7(b)(1). Specifically, the code calls for the adoption and promulgation of a written policy for vehicular pursuits. Analyzing whether the written policy was properly adopted and promulgated is an issue of fact that is not proper to assess at the pleading stage.

"Vehicle Code §17001 creates a statutory exception to public entities' general tort immunity: 'A public entity is liable for death or injury to person or property proximately caused by a negligent or wrongful act or omission in the operation of any motor vehicle by an employee of the public entity acting within the scope of his employment.'" (*Ramirez*, supra, 5 Cal.5th at 999, quoting Veh. Code, §17001.) Regarding injuries caused by fleeing suspects during police pursuits, "'Section 17004.7 in turn limits the liability that ... [Vehicle Code] section 17001 otherwise permits by affording immunity to public agencies that adopt and implement appropriate vehicle pursuit policies.'" (*Ramirez*, supra, 5 Cal.5th at 999, quoting *Ramirez v. City of Gardena* (2017) 14 Cal.App.5th 811, 818.)

Plaintiff's FAC alleges that the City failed to adopt and promulgate a written vehicle pursuit policy that complied with all twelve minimum standards mandated by Vehicle Code §17004.7, subdivision (c). (FAC, ¶ 25(a).) The FAC further alleges that the City failed to provide the required regular and periodic annual training regarding its vehicle pursuit policy to its peace officers, including Officer C. Fuller. (FAC, ¶ 25(b).) Moreover, the FAC asserts that any annual training provided by the City was inadequate and failed to meet the minimum standards required by law, including the training guidelines established by the Commission on Peace Officer Standards and Training (POST). (FAC, ¶ 25(c).) Finally, the FAC alleges that the City failed to meaningfully implement and enforce its policy, including failing to ensure systemic compliance with the requirement that all peace officers certify in writing that they have received, read, and understood the policy, as mandated by Vehicle Code §17004.7, subdivision (b)(2). (FAC, ¶ 25(d).) Such allegations create factual disputes that must be accepted as true at the stage and are not overcome by City's production of a written policy. (See *Ketchum v. State* (1998) 62 Cal.App.4th 957, 961; *Flores v. City of San Diego* (2022) 83 Cal.App.5th 360, 367; *Ramirez v. City of Gardena* (2018) 5 Cal.5th 995, 1002.)

The Demurrer is overruled as to the Vehicle Code § 17001 cause of action.

Conclusion

For the reasons explained above, **the Demurrer is overruled.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.